

Dr. Rajeev Sinha v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 May 2023 · 2023:AHC:117276-DB · Writ-C No. 30396 of 2010 ·
Writ dismissed as infructuous; any interim order vacated.

HEADNOTE

Writ seeking quash of a 22 February 2010 refusal of an electric connection, dismissed as infructuous when nobody appeared for the petitioner. An interlocutory 20 July 2010 order had directed the licensee to consider the application subject to payment of a predecessor's Rs. 23,534 permanent-disconnection bill and an indemnity bond under the U.P. Electricity Supply Code, 2005; that direction was never taken to a final merits decision.

FACTUAL SUMMARY

The petitioner, a tenant running a clinic, challenged the 22 February 2010 rejection of his electric-connection application. The rejection cited dues against Keshav Chand and a landlord letter withholding permission. The licensee said the petitioner's father had sought permanent disconnection in 2005, leaving Rs. 23,534 unpaid. The petitioner offered to pay those dues. On 20 July 2010 the Court directed consideration of the connection subject to payment and an indemnity bond. When listed in 2023, nobody appeared.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal as infructuous

HOLDING

On revision of the list, nobody appeared for the petitioner. The Court held that from the pleadings and prayer the writ had become infructuous by efflux of time or the petitioner had no interest to prosecute it further, dismissed the petition as infructuous, and vacated any interim order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CONNECTION REFUSAL, PRIOR-TENANT DUES, LANDLORD PERMISSION, AND SUPPLY CODE INDEMNITY

The 20 July 2010 direction to consider the application subject to payment of Rs. 23,534 and an indemnity bond under the U.P. Electricity Supply Code, 2005 was interlocutory and listed for admission; the 2023 dismissal as infructuous did not decide those issues. ¶ 1